

23STCV03076 23STCV03076

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Case Number: 23STCV03076 Hearing Date: July 29, 2026 Dept: 307

13 TENTATIVE RULING 9:15 a.m., Wednesday, July 29, 2026

SOLUTIONS

30 EASTERN EUROPE, S.R.L., et al. v. TOSOLINI, LAMURA, RASILE & TONIUTTI, LLP, et al. [23STCV03076]

MOTIONS

TO QUASH SERVICE OF SUMMONS (x5) OF DEFENDANTS: [1] EMILIANO MALIZIA, [2] ROCCO LAMURA, [3] NICOLA RASILE, [4] TOSOLINI, LAMURA, RASILE, & TONIUTTI, LLP AND [5] LAMURA, MALIZIA, RASILE & PARTNERS, LLP

TIMELINE:

FAC alleges legal malpractice, breach of contract, etc.

Early 2021: Plaintiffs

Solutions 30 Eastern Europe, S.R.L. its majority

shareholder,

Federico Salmoiraghi, and Swordfish Advisory Service,

S.R.L. (collectively, "Plaintiffs") seek representation in a

defamation lawsuit and consult with Defendant Emanuele Tosolini ("Tosolini"), a

partner of the law firm(s) Defendants Tosolini, Lamura, Rasile, &

Toniutti ("TLRT") and Tosolini & Lamura, LLP ("T&L") (collective, the "TLRT Firm").

¿

2/3/2021:

Plaintiffs execute a Retainer Agreement
with the TLRT Firm, signed

by Defendant
Rocco Lamura ("Lamura"), another partner.

¿

4/2/2021: The TLRT Firm files a defamation
suit on behalf of Plaintiffs in the

Northern
District of California (the "Underlying Action").

¿

2/3/2022:
The Underlying Action is dismissed for failure to amend the

complaint. Defendant Emiliano Malizia ("Malizia"),
an attorney for the TLRT Firm, misleads Plaintiffs about the nature of the dismissal.

2/4/2022:
When Plaintiffs discover that the Underlying Action was dismissed,

Malizia informs
Plaintiffs that the TLRT Firm had chosen not to file
an amended complaint and instead would file an appeal.

¿

3/1/2022: The TLRT Firm
appeals dismissal of the Underlying Action. The

Ninth
Circuit dismisses the appeal on 7/22/2022.

¿

2/3/2023:

Plaintiffs file the Complaint in this action. The operative
First

Amended

Complaint ("FAC"), filed 6/21/2024, alleges causes of action for:¿

¿

1.

Legal

Malpractice (Professional Negligence)¿

2.

Breach

of Fiduciary Duty¿

3.

Breach

of Contract¿

4.

Intentional

Concealment/Misrepresentation of Fact¿

¿

7/24/2024:

A Notice of Removal to Federal Court is filed.¿On 1/10/2025, the

Court

receives a Notice of Remand from Federal Court.¿

4/24/2025: The

Court holds a hearing on the Motions to Quash Service of

Summons filed

by Defendants Malizia, Tosolini, Lamura, the TLRT Firm, and attorney Nicola

Rasile ("Rasile"), and takes the motions under submission. On 4/25/2025, the

Court enters a final ruling granting the motions to quash.

12/15/2025: The
Court denies the Motions to Dismiss for Lack of Service by

Defendants
Tosolini, Lamura, Rasile, Malizia, and the TLRT Firm.

5/22/2026: The
Court denies the Motions to Dismiss for Lack of Service by

TLRT (which
was joined by Lamura, Malizia, and Rasile) and by the law firm Defendant Lamura,
Malizia, Rasile, and Partners, LLP ("LMR"). Plaintiffs allege LMR is the successor
of TLRT.

5/29/2026:
Plaintiffs file corrected Proofs of Service for TLRT, LMR, Rasile,

Lamura,
and Malizia.

6/2/2026: Defendants
TLRT, LMR, Malizia, Rasile, and Lamura (collectively,

"Moving
Defendants") each independently file these Motions to Quash Service of Summons,
which are followed by Plaintiffs' respective oppositions (6/18/2026) and Moving
Defendants' respective replies (7/7/2026).

TENTATIVE
RULING: MOTIONS TO QUASH SERVICE OF SUMMONS (x4) OF DEFENDANTS: [1] ROCCO
LAMURA, [2] NICOLA RASILE, [3] TOSOLINI, LAMURA, RASILE, & TONIUTTI, LLP AND
[4] LAMURA, MALIZIA, RASILE & PARTNERS, LLP are GRANTED.

MOTION
TO QUASH SERVICE OF SUMMONS OF DEFENDANT EMILIANO MALIZIA is DENIED.

MOTION(S) TO QUASH SERVICE OF
SUMMONS

A. Timeliness

As a

preliminary matter, Plaintiffs object to each Motion to Quash on the grounds of untimeliness. A motion to quash service of summons based on lack of jurisdiction must be filed "on or before the last day of his or her time to plead or within any further time that the court may for good cause allow." (Code Civ. Proc., § 418.10(a)(1).) While Defendants argue that this statutory deadline applies only to motions to quash based on lack of personal jurisdiction, "[p]ersonal jurisdiction is conferred only where the statutory requirements for service of process are fulfilled." (Stancil v. Superior Court (2021) 11 Cal.5th 381, 397.) In other words, a challenge to improper service of summons is itself a jurisdictional challenge under the meaning of Code of Civil Procedure section 418.10. (Kroopf v. Guffey (1986) 183 Cal.App.3d 1351, 1360 ["a motion to quash service is strictly limited to the question of jurisdiction over the defendant."].) Moving Defendants provide no legal authority for the position that Code of Civil Procedure section 418.10 categorically does not apply to motions to quash based on improper service. In fact, Moving Defendants concede that these motions are "potentially untimely." (Mots., at pp. 4-5.)

Additionally,

the 30-day response deadline for filing a motion to quash service of summons begins to run not upon the filing of a valid proof of service, but on the date that service is complete. (See In re Marriage of Obrecht (2016) 245 Cal.App.4th 1, 16 [calculating the date to file a responsive pleading or a motion to quash based on the date service was completed, unrelated to the filing of a proof of service].) "It is the fact of service which commences the action and confers jurisdiction, not the proof of service." (Johnson & Johnson v. Superior Court (1985) 38 Cal.3d 243, 252.) The Proof of Service itself is merely evidentiary. (See Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1442 [a rebuttable presumption of valid service arises where a filed proof of service "complies with the statutory requirements regarding such proofs"].)

In any

event, it is well-established that "[a] defendant is under no duty to respond to a defectively served summons. The notice requirement is not satisfied by actual knowledge of the action without service conforming to the statutory requirements which are to be strictly construed." (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 411.) To refuse to consider the merits of an

otherwise untimely motion to quash service of summons which argues that service did not strictly conform with the statutory requirements would contradict the existence of the strict requirements themselves. Under the circumstances, there is “good cause” to consider whether service of process was valid as to the Moving Defendants. (Code Civ. Proc., § 418.10, subd. (a)(1).)

B. Validity of Service of Process

“Once

a defendant files a motion to quash the burden is on the plaintiff to prove by a preponderance of the evidence the validity of the service.” (Bolkiah v. Superior Court (1999) 74 Cal.App.4th 984, 991.) “The filing of a proof of service creates a rebuttable presumption that the service was proper. However, the presumption arises only if the proof of service complies with the applicable statutory requirements.” (Floveyor Internat., Ltd. V. Superior Court (1997) 59 Cal.App.4th 789, 795.)

1.

TLRT
and LMR

As

a preliminary matter, Plaintiff concedes that TLRT is dissolved. (Caldwell Decl., ¶ 4.) Plaintiff’s counsel contends that LMR is the successor of TLRT. (Id. ¶¶ 4, 16.) Lamura and Malizia, who are partners of LMR, declare that this is incorrect: LMR is not the successor to TLRT. (Lamura Decl., ¶ 4; Malizia Decl., ¶ 6.) In any event, Plaintiffs can demonstrate valid service of process upon both TLRT and LMR by demonstrating that a general partner was validly served on behalf of TLRT and LMR, respectively. In its 4/24/2025 ruling on the prior motion to quash, this Court has already determined that TLRT operated as a general partnership. (Minute Order, Apr. 24, 2025.) Likewise, as reflected in its name, LMR is a limited liability partnership. Pursuant to Code Civ. Proc., § 416.40, subd. (a), “[a] summons may be served on an unincorporated association (including a partnership) by delivering a copy of the summons and of the complaint: [¶] (a) If the association is a general or limited partnership, to the person designated as agent for service of process in a statement filed with the Secretary of State or to a general partner or the general manager of the partnership.” (Code Civ. Proc., § 416.40, subd.

(a), *italics added.*)

Here,

the operative Proofs of Service for TLRT and LMR were filed with this Court on May 29, 2026. Both Proofs of Service reflect service on TLRT and LMR by first-class mail, postage prepaid and acknowledgment of receipt sent on November 22, 2025 to 260 Madison Avenue, 8th Floor, New York, NY 10016 pursuant to Code Civ. Proc., § 415.40. (TLRT Proof of Service, May 29, 2026; LMR Proof of Service, May 29, 2026.) Code Civ. Proc., § 415.40 provides: “A summons may be served on a person outside this state in any manner provided by this article or by sending a copy of the summons and of the complaint to the person to be served by first-class mail, postage prepaid, requiring a return receipt. Service of a summons by this form of mail is deemed complete on the 10th day after such mailing.” (Code Civ. Proc., § 415.40, *italics added.*)

In this

case, the mailing receipt for the purported service on both TLRT and LMR is identical and it reflects that the mailing was addressed to “Rocco Lamura Agent for Service C/O Lamura Mazile [sic] Rasile” (TLRT Proof of Service, May 29, 2026; LMR Proof of Service, May 29, 2026.) Plaintiffs allege that Lamura is a named partner of TLRT and LMR. (Compl., ¶ 15; Caldwell Decl., ¶ 4.) Moving Defendants do not dispute this contention. In fact, Lamura concedes that he is a founding and managing partner of LMR. (Lamura Decl., ¶ 3.) Instead, Moving Defendants argue that the package documented in the Proof of Service was never delivered. (Mot., at p. 7.) Indeed, the most recent update on the tracking record for the package number (accessed on May 2026) reflects an unsuccessful delivery attempt on 11/28/2025. (Strick Decl., Exh. D.) While Plaintiff’s counsel declares that she “personally reviewed” the tracking information and contends that the packages were delivered, she offers no foundation for this assertion, and her declaration is barred by the secondary evidence rule and contradicted by TLRT’s Exhibit D. (Caldwell Decl., ¶ 5.)

Even

assuming that the mailing was ultimately delivered, there is no evidence that Lamura or an authorized representative to accept service on his behalf received the package. Moving Defendants argue that the Madison Avenue address to which the mailing was addressed is not a proper location for service for Lamura. Lamura declares that he has been a resident of Rome, Italy for the past three years and his usual place of business is also in Rome, Italy, where he has

worked for the last three years. (Lamura Decl., ¶¶ 7-8, 17.) Plaintiff does not present any evidence refuting that Lamura holds a usual place of business at the Madison Avenue office. Further, the evidence suggests that the individual who purportedly signed for the delivery (R. “Cepeta” or “Cepeda”) could not have been authorized to accept service on Lamura’s behalf. Lamura declares that the only employee who works for LMR at the Madison Avenue address is a paralegal (i.e. not Lamura) and that LMR does not employ any individual named R. “Cepeta” or “Cepeda.” (Id. ¶¶ 18-19.) Because the evidence demonstrates that Lamura could not have personally received and signed for the certified mailing in New York, and the person who purportedly accepted the mailing was not authorized to accept service on his behalf, Plaintiffs have failed to overcome their burden of demonstrating compliance with Code Civ. Proc., § 415.40 in accordance with their Proof of Service for either TLRT or LMR.

2.

Lamura
and Rasile

The

operative Proofs of Service for Lamura and
Rasile were filed

with this Court on May 29, 2026. The Proofs of Service reflect service on Lamura and Rasile by substituted service at 8383 Wilshire Blvd., 8th Floor, Beverly Hills, CA, 90211 on December 2, 2025, delivered to the “Receptionist for Defendant and Lamura, Malizia, Rasile & Partners – Adult, over 18 years old, confirmed Role/Relationship, Female, Caucasian (possible Hispanic).” (Lamura Proof of Service, May 29, 2026; Rasile Proof of Service, May 29, 2026.) Thereafter, the documents were purportedly mailed (by first-class, postage prepaid) to the respective defendants at same location on the same date. (Ibid.) The process server’s declarations of diligence attached to the Proofs of Service reflect three total service attempts for each defendant between November and December 2025 at the same address. (Ibid.) No other service efforts were made at another address. (Ibid.)

Under

Code of Civ. § 415.20, substituted service may be effectuated by: (1) “leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box”, (2) “in the presence of a competent member of the household or a person apparently in charge of his

or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age", (3) "who shall be informed of the contents thereof", and (4) "by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc., § 415.20, subd. (b), italics added added.) "Personal delivery must be attempted in all cases where this alternative method of service is used." (Judicial Council Comment to Code Civ. Proc., § 415.20.)

Even

if Plaintiffs are correct that LMR maintained an office at the 8383 Wilshire Blvd. address, Plaintiffs fail to submit any evidence (beyond counsel's mere speculation and conclusory assertions) demonstrating that either Lamura or Rasile's usual place of business was located at this Beverly Hills office. (Caldwell Decl., ¶¶ 8, 21-22.) As described above, Lamura declares that he has been a resident of Rome, Italy for the past three years and his usual place of business is also in Rome, Italy. (Lamura Decl., ¶¶ 7-8, 17.) Lamura denies that he has either worked or practiced law in California. (Id. ¶¶ 11-12.) Lamura also denies that he has been to the office located at 8383 Wilshire Blvd. (Id. ¶ 14.) Likewise, Rasile declares that he is also a resident of Rome, Italy and his usual place of business is also in Rome, Italy. (Rasile Decl., ¶¶ 5-6.) Rasile denies that he either worked or practiced law in California. (Id. ¶¶ 9-10.) Rasile also denies that he has been to the office located at 8383 Wilshire Blvd. (Id. ¶ 12.)[1]

Even the LMR firm maintained one of many offices located at the Beverly Hills address, Plaintiffs fail to submit any evidence demonstrating that Lamura's or Rasile's usual place of business was located at that particular office space. Accordingly, Plaintiffs have not demonstrated that service was attempted on either Lamura or Rasile at a statutorily compliant location.

For

the same reasons, Plaintiffs also fail to demonstrate that they acted with reasonable diligence in attempting personal service on Lamura or Rasile prior to attempting substituted service. "[T]he burden is upon the plaintiff to show reasonable diligence to effect personal service and each case must be judged upon its own facts." (Evartt v. Superior Court (1979) 89 Cal.App.3d 795, 801.) Generally, "in order to avail oneself of

substituted service under section 415.20, [t]wo or three attempts to personally serve a defendant at a proper place ordinarily qualifies as reasonable diligence.” (Board of Trustees of Leland Stanford Junior University v. Ham (2013) 216 Cal.App.4th 330, 337, internal quotations omitted, italics added.) Here, although the process server made three attempts to serve Lamura and Rasile, each attempt to serve them occurred at the same Beverly Hills office which Plaintiffs have failed to establish is their usual place of business. Because multiple attempts to personally serve Lamura and Rasile at a proper place were never made, Plaintiffs have not demonstrated that they attempted to personally serve these defendants with reasonable diligence.

3. Malizia

The operative Proof of Service for Malizia was filed with this Court on May 29, 2026. The Proof of Service reflects service on Malizia by substituted service at 8383 Wilshire Blvd., 8th Floor, Beverly Hills, CA, 90211 on December 2, 2025, delivered to the “Receptionist for Defendant and Lamura, Malizia, Rasile & Partners – Adult, over 18 years old, confirmed Role/Relationship, Female, Caucasian (possible Hispanic).” (Malizia Proof of Service, May 29, 2026.) Thereafter, the documents were purportedly mailed (by first-class, postage prepaid) to Malizia at same location on the same date. (Ibid.) The process server’s declaration of diligence attached to the Proof of Service reflects three total service attempts to serve Malizia between November and December 2025 at the same address. (Ibid.) No other service efforts were made at another address. (Ibid.)

Unlike Lamura and Rasile, Malizia concedes that his usual place of business is at the 8383 Wilshire Blvd. address. (Malizia Decl., ¶ 7.)

However, Malizia contends that the individual identified in the Proof of Service who accepted service is not authorized to accept service on Malizia’s behalf. (Mot., at p. 7.) Malizia declares that the 8383 Wilshire Blvd. office is a “Regus virtual workspace” and LMR does not employ a receptionist this office location. (Malizia Decl., ¶¶ 8-9.) Even so, as noted above, to effect substituted service, the individual served need not necessarily be an authorized agent for service, but only the person “apparently in charge” at the defendant’s usual place of business. (Code Civ., Proc., § 415.20.)

According to the Proof of Service, the process server confirmed the receptionist's relationship with LMR. (Malizia Proof of Service, May 29, 2026.) Whether the receptionist was a direct employee of LMR or the individual in charge of reception at a shared office space, which included LMR's office, is immaterial. The shared receptionist of a joint office space, where LMR's offices are indisputably located, is a person who is "apparently in charge" of receiving correspondence at the LMR office location. It would be unreasonable to permit Malizia to avoid service on the sole premise that the receptionist of LMR's shared office space was neither directly employed by LMR nor exclusively working for LMR. By analogy, it cannot reasonably be said that a security guard or a receptionist in a residential apartment lobby is not "apparently in charge" of a resident's usual mailing address simply because there are multiple residences in the same building. A reasonable person would conclude that a receptionist in the reception area of a joint office space where the defendant's office is located is the person who appears to be in charge at the defendant's office.

At minimum, the process server's affidavit is sufficient to create a rebuttable presumption that substituted service at Malizia's usual place of business (a shared office space) was proper. Malizia submits no evidence or legal authority rebutting the presumption that a shared receptionist at a joint office space is an invalid individual to receive substituted service. To permit Malizia to avoid this Court's jurisdiction on a mere technicality such as this would be an unreasonable application of the statutory requirements for substituted service.

C. Personal Jurisdiction

Finally, Lamura and Rasile separately move to quash service of the FAC on the grounds that this Court lacks personal jurisdiction over them. In a motion to quash based on lack of personal jurisdiction, the initial burden is on Plaintiffs to demonstrate the existence of minimum contacts justifying personal jurisdiction. (Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568; Muckle v. Superior Court (2002) 102 Cal.App.4th 218, 228.) Plaintiffs must overcome their burden by a preponderance of evidence, based upon competent evidence, and not on an unverified complaint. (Jewish Defense Org. v. Superior Court (1999) 72 Cal.App.4th 1045, 1054-1055; Sheard v. Superior Court (1974)

40 Cal.App.3d 207, 210-212.)

Here,

Plaintiffs fail to overcome their evidentiary burden. Plaintiffs do not appear to dispute that Lamura and Rasile are not “at home” in California. Instead, Plaintiffs argue that this Court has specific jurisdiction over these individual defendants based on their ownership and operation of the law firm, LMR, which has a location in Beverly Hills, CA. (Lamura Opp., at pp. 10-11; Rasile Opp., at pp. 14-15.) As discussed above, Plaintiff’s counsel’s contention that Lamura and Rasile work from their Los Angeles office and engage in California litigation through their Los Angeles office is unsupported by any documentary evidence beyond Ms. Caldwell’s conclusory and speculative declaration and the FAC itself. (Caldwell Decl., ¶¶ 25-29, 36-41; FAC, ¶ 117.)[2] As discussed supra, this evidence is insufficient to demonstrate that Lamura and Rasile have minimum contacts with the state of California by way of their business. (See supra, Section B.2.)

As

the Court has previously held, jurisdiction over a business partnership does not, by itself, confer jurisdiction over the individual partners. (Minute Order, Apr. 24, 2025; Goehring v. Superior Court (Bernier) (1998) 62 Cal.App.4th 894, 904–905 [it is well established that “jurisdiction over a partnership does not necessarily permit a court to assume jurisdiction over the individual partners.”].) “Although individual partners are jointly and severally liable for the torts of the partnership, jurisdiction over each defendant must be established individually.” (Id., quoting Sher v. Johnson (9th Cir. 1990) 911 F.2d 1357, 1365, internal citations and quotations omitted.) Plaintiffs are required to demonstrate an independent basis for personal jurisdiction over the Lamura and Rasile beyond California’s connection to the law firm itself. Plaintiffs have not done so here.

Based on

the aforementioned analysis, the
Motions to Quash Service of Summons of TLRT, LMR, Lamura, and Rasile are GRANTED and the Motion to Quash Service of Summons of Malizia is DENIED. Defendant Malizia is to file a responsive pleading within 20 days pursuant to the stipulated order dated 6/11/2026.

Defendants (1) Emiliano Malizia, (2) Rocco

Lamura, (3) Nicola Rasile, (4) Tosolini, Lamura, Rasile, & Toniutti, LLP, and (5) Lamura, Malizia, Rasile, & Partners, LLP to serve notice of rulings. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court's website on 7/28/26 at 2 p.m.

[1] Notably, Rasile

also contends that he is not even a partner, employee, agent, or independent contractor of LMR or any other U.S. law firm and has simply licensed his last name for the firm. (Id. ¶¶ 3-4.)

[2] Plaintiff's citations to Exhibits

14 and 15 in the Caldwell declaration either do not exist or are unlabeled and cannot be identified or located by the Court.